DRAFT — PENDING LEGAL REVIEW

Data Processing Agreement (DPA) — PivetTrack

Version: 0.2 (draft) — November 4, 2026. **Not in force until signed by both parties.** Provided so that the Client and its advisors can review it.

> **English translation.** This is a translation of the Spanish DPA v0.2, provided for convenience. It has not been reviewed by an attorney. If the two versions conflict, the Spanish text prevails.

Processor: PIVET DIGITAL AUTOMATIONS LLC ("Pivet"), a limited liability company organized under the laws of the State of Florida, United States.
Controller: _____ (the "Client").

> **How it was built.** This draft brings together in one document what the Privacy Policy v1.2 ("Policy") and the Terms of Service v1.3 ("Terms") already say, citing the source of each item. It adds no commitments: what those documents do not say is not here either.

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1. Purpose and governing documents

1.1. This Agreement sets out Pivet's obligations as processor of the personal data held in the Client's PivetTrack instance (Policy §2 and §14).

1.2. The relationship is governed by the signed SOW and SLA and, where they are silent, by the Terms. If these conflict, the SOW and the SLA prevail, in the order those documents establish (Terms §1).

2. Roles

2.1. The Client is the *controller* of the data in its instance. Pivet processes that data on behalf of and according to the instructions of the Client, as *processor* (Policy §2; Terms §10).

2.2. The data the Client enters belongs to the Client (Terms §10).

2.3. People who use the B2B Order Portal are the Client's buyers, not Pivet's customers. Pivet does not choose them, does not contact them on its own behalf and does not use their data for any purpose of its own. The Client decides who gets access, must inform its buyers about the processing of their data and have a legal basis for it, and is the recipient of their requests (Policy §2).

2.4. This Agreement does not cover data Pivet processes as controller: visitors to the website www.raulpivet.com/pivettrack.html, people who write to learn about the product, and contact and billing details of the Client's representatives (Policy §2).

3. Data processed

Category of people	Data	Source
The Client's internal users	Username, first and last name, email, role, language, who created the account, creation date and last login; password only as a *hash*; second-factor secret, encrypted; backup codes	Policy §3.1
B2B Portal buyers	Email, name, language, Client the account belongs to, creation date, last login and user who created it; password only as a *hash*; if a second factor is used, its encrypted secret and backup codes; orders placed or cancelled	Policy §3.2
Contacts recorded by the Client	Customers and suppliers: company name, EIN, contact, phone, email and address. Transfer recipients: name, email and phone	Policy §3.3
People operating the instance	User and date and time of each document and movement; log of administrative actions with IP address	Policy §3.4
People accessing the instance	IP address; for each login attempt on the internal panel: username, IP address, user agent, path and time; Portal counter under a SHA-256 fingerprint	Policy §3.5
Integrations	Public identifier of the API credential, secret only as a *hash* and, if assigned, client certificate fingerprint; webhook URL and its encrypted secret; order received and content of each notification	Policy §3.6
Recipients of operational emails	Email address and name	Policy §3.7

Purpose: providing the service contracted by the Client and protecting the security of the platform (Policy §3 and §4).

What Pivet does not do: it does not sell or rent personal data and does not use instance data for advertising or for purposes of its own (Policy §3.11).

QuickBooks Online. If the Client activates the integration, the data described in Policy §3.10 is sent to the Client's own QuickBooks company. Intuit is not a Pivet subprocessor: it is a provider the Client contracts with and chooses to connect (Policy §3.10; Terms §4).

4. Location and isolation

Each Client has an isolated instance, with its own project on Railway (application) and its own project on Supabase (PostgreSQL database), which does not share a database with any other Client. Those projects are held in accounts in Pivet's name. Data is hosted in the United States: the application in Railway's eastern region and the database in a US region of Supabase (Policy §5; Terms §3).

5. Subprocessors

5.1. The following are involved (Policy §6):

Provider	Purpose	Data it sees
Railway	Running the application of each instance	All application traffic and its service logs
Supabase	PostgreSQL database of each instance and its backups	All instance data
Resend	Transactional email, on instances where it is configured	Recipient, name and content of each email

5.2. If Pivet adds a subprocessor that processes instance data, it will notify the Client's registered contact email at least thirty (30) days in advance (Policy §6).

6. Security

6.1. Pivet applies, among others, these measures: passwords only as a *hash*; mandatory second factor for administrative roles; second-factor and webhook secrets encrypted in the database; API secrets only as a *hash*; attempt limits and temporary lockout against brute force; session timeout on inactivity; HTTPS-only cookies; a restrictive content security policy; role-based access control; and an immutable record of movements and administrative actions (Policy §9).

6.2. The application serves traffic only over HTTPS. Encryption of database storage depends on Supabase, according to its current security documentation, and is not a commitment of Pivet's own (Policy §5).

6.3. Each instance has an automatic daily backup kept for seven (7) days (Policy §5; Terms §5).

6.4. No system is infallible. Access security also depends on each user protecting their credentials (Policy §9), and the Client is responsible for creating and removing its users and for the custody of their credentials (Terms §12).

7. Security incidents

If Pivet confirms a security breach in the infrastructure under its control that exposes the Client's data, it will notify the Client within no more than seventy-two (72) hours of confirmation. The Client, as controller, decides on notification to affected individuals, with the assistance it reasonably requests from Pivet (Policy §11).

8. Requests from individuals

Requests for access, correction, deletion or others go to the Client. If an individual writes directly to Pivet, Pivet forwards the request to the relevant Client and assists it as requested in responding (Policy §10).

By design, movement and audit records are not modified or deleted, and accounts are deactivated rather than deleted; for that reason, deleting some data may not be possible while the instance exists (Policy §8 and §10; Terms §10).

9. Retention, return and deletion

9.1. Instance data is kept while the contract is in force (Policy §8).

9.2. After the contract ends, the Client has thirty (30) calendar days to export it with the Software's tools, a right conditional on the Client being current on its payments (Terms §10; Policy §8).

9.3. If the Client requests it in writing within those thirty (30) days, Pivet also delivers, at no cost, a full copy of its database (a PostgreSQL dump) (Terms §10; SLA §6.2).

9.4. Once that period ends, Pivet deletes the instance and its database, unless the law requires them to be kept. When the project is deleted, Supabase also deletes its backups (Terms §10; Policy §8; SLA §6.3).

9.5. Infrastructure service logs are kept by Railway for seven (7) days, and large exports expire after 24 hours (Policy §3.8 and §8).

10. Confidentiality and liability

10.1. Each party keeps the other's non-public information confidential (Terms §14).

10.2. This Agreement does not change the liability limits of Terms §15 and of the SLA.

11. Governing law, language and notices

11.1. This Agreement is governed by the laws of the State of Florida, with the jurisdiction of the courts located in Miami-Dade County (Terms §17).

11.2. The Spanish version prevails (Terms §19).

11.3. We process data in accordance with the applicable laws of the United States and the State of Florida, including the *Florida Information Protection Act*. This Agreement does not assert compliance with any other specific law (Policy §4).

11.4. Substantial changes to the processing of instance data are notified to the registered contact email at least thirty (30) days in advance (Policy §15).

11.5. Pivet's contact: PIVET DIGITAL AUTOMATIONS LLC, Cutler Bay, FL 33189, United States; raul@raulpivet.com (Policy §13; Terms §20).

12. Acceptance

For PIVET DIGITAL AUTOMATIONS LLC:

Name	_____
Title	_____
Signature	_____
Date	_____

For the Client:

Company Name	_____
Name	_____
Title	_____
Signature	_____
Date	_____